

M/S Rajpal Singh Cane Crusher v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 January 2024 · 2024:AHC:5342-DB · WRIT - C No. 7 of 2024 · **Disposed; pay admitted dues in installments, decide 6.5 plea, restore supply**

HEADNOTE

Where the consumer admits the demand notice dated 18.10.2022 and disputes only a later enhancement, the writ is disposed of by directing that admitted sum in three equal monthly installments. After the second installment the Sub-Divisional Officer must decide the representation dated 07.06.2023 by a speaking order under clause 6.5 of the U.P. Electricity Supply Code, 2005; the balance abides that order and supply is to be restored.

FACTUAL SUMMARY

The meter at M/S Rajpal Singh Cane Crusher was removed for permanent disconnection in November 2022, after a demand notice dated 18 October 2022 for Rs.16,60,871. The licensee thereafter raised a further demand of Rs.20,33,773. The crusher filed a writ seeking restoration of supply and a decision on its representation dated 7 June 2023, which disputed the correctness of the arrears. Counsel accepted liability for the October 2022 notice and offered payment in installments, to which the Electricity Department agreed in three equal monthly parts.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

pending representation on enhanced arrears and restoration

HOLDING

On the petitioner's admission that the notice dated 18.10.2022 for Rs.16,60,871 was payable, the writ was disposed of by directing deposit of that sum in three equal monthly installments, the first by the end of January 2024 and the next by the end of February 2024. After the second installment, the Sub-Divisional Officer must decide the representation dated 07.06.2023 by a speaking order in terms of clause 6.5, the balance of the later demand abiding that decision, and the respondents must restore supply. ¶ 3-6

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided The representation dated 07.06.2023, disputing the arrears claimed after permanent disconnection, must be decided by the Sub-Divisional Officer by a speaking order after the second installment of the admitted demand, and the balance abides that decision. ¶ 4-6

6.5-representation-as-appropriate-remedy The Court did not itself determine the later demand of Rs.20,33,773 and treated a decision in terms of clause 6.5 as the means of disposing of that claim once the admitted notice amount is deposited. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LATER DEMAND OF RS.20,33,773, ABOVE THE ADMITTED NOTICE OF RS.16,60,871, IS CORRECT

Respondent no.3 must decide the representation dated 07.06.2023 by a speaking order; the balance abides that decision. ¶ 6